

COURT ONLINE COVER PAGE

IN THE LABOUR COURT OF SOUTH
AFRICA HELD AT CAPE TOWN

CASE NO: **2026-077546**

In the matter between:

Wilbur William Matthee

Plaintiff / Applicant

and

**Afrocentric Health (RF) (PTY)
LTD, Medscheme Holdings (PTY)
LTD, Afrocentric Investment Corporation
Limited**

Defendant / Respondent

Practice Notes

NOTE: This document was filed electronically by the Registrar on 5/5/2026 at 3:07:22 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED BY:

**Registrar of The Labour Court,
Cape Town**

**IN THE LABOUR COURT OF SOUTH AFRICA
CAPE TOWN**

Case No: **2026-077546**

In the matter between:

WILBUR WILLIAM MATTHEE



Applicant

and

AFROCENTRIC HEALTH (RF) (PTY) LTD & ANOTHER

Respondents

APPLICANT'S PRACTICE NOTE

NATURE OF THE APPLICATION: This is an application for Default Judgment in terms of Rule 16, following a claim for the repayment of unlawfully recovered remuneration under Section 77A of the Basic Conditions of Employment Act 75 of 1997 ("BCEA").

RIPENESS: The application was served on the Respondents via email on 13 April 2026 at 22:03. As service was effected after 16:00, it is deemed to have been effected on 14 April 2026 (Day 0) in terms of the Rules. The 10-day period for the delivery of a Notice of Intention to Oppose, accounting for the public holiday on 27 April 2026, accordingly expired at the close of business on 29 April 2026. No opposition has been received. The matter is ripe for default judgment as at 30 April 2026.

RELIEF SOUGHT: A declaratory order that the deduction of R14,811.77 was unlawful under Section 34(1) and Section 34(2) of the BCEA, together with an order for immediate repayment of the said amount, interest at the prescribed legal rate from 23 July 2025 to date of payment, and costs.

DURATION: The matter is unopposed and may be dealt with in Chambers or on the Unopposed Roll (approximately 10 minutes).

NECESSITY OF THE ORDER: The order is required to remedy a unilateral breach of contract and statutory law by the Respondents, who have recovered remuneration without the Applicant's written consent and in contravention of Section 34 of the BCEA.



DATED AT CAPE TOWN ON THIS 30TH DAY OF APRIL 2026.

WILBUR WILLIAM MATTHEE
Applicant (Self-Represented)
Email: info@ethichawks.co.za

TO: THE REGISTRAR OF THE LABOUR COURT, CAPE TOWN